

Soil and Watershed Conservation Act, 1982

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Amending Acts

1. Act to Amend Certain Nepal Acts relating to Forests, 2048 2048.12.30
2. Act to Strengthen the Republic and Amend Certain Nepal Laws, 2066 2066.10.07
3. Act to Amend Certain Nepal Acts, 2072 2072.11.13
4. Act to Amend Certain Nepal Acts, 2082 2082.04.14

Act No. 16 of the year 2039

An Act Made to Provide for Soil and Watershed Conservation

Preamble: Whereas, it is desirable to make legal provisions for controlling natural disasters such as floods, landslides, soil erosion, and for soil and watershed conservation, and to maintain the convenience and economic interest of the general public;

Therefore, His Majesty King Birendra Bir Bikram Shah Dev, with the advice and consent of the National Panchayat, has enacted this Act. 1. Short Title and Commencement: (1) This Act may be called the "Soil and Watershed Conservation Act, 2039".

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Protected Watershed Area" means a protected watershed area declared under Section 3.

(b) "Soil and Watershed Conservation" means the work of preventing or protecting any area from destruction by natural disasters such as floods, landslides, soil erosion, and of maintaining the volume and flow of water in a normal condition, or of preventing the flow of water from becoming muddy and maintaining its cleanliness.

(c) "Land Use System" means the process of long-term use of land by cultivating or performing other activities in such a way that the physical and chemical properties that maintain the fertility of the land are not weakened, destroyed, or are maintained.

(d) "Department" means the amended by the Act to Amend Certain Nepal Acts, 2082. Department of Forests and Soil Conservation.

(e) "Watershed Conservation Officer" means an officer appointed or designated under Section 19.

(f) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act. 3.

Power to Declare Protected Watershed Area: (1) If deemed necessary for soil and watershed conservation, the Government of Nepal may, by publishing a notice in the Nepal Gazette, declare any area of Nepal omitted by the Act to Strengthen the Republic and Amend Certain Nepal Laws, 2066. as a protected watershed area, specifying its four boundaries.

(2) The Government of Nepal may, by publishing a notice in the Nepal Gazette, alter the boundaries of a protected watershed area declared under Sub-section (1) as required.

(3) Added by the Act to Amend Certain Nepal Acts, 2082.

For the conservation and management of the protected watershed area declared under Sub-section (1), the Watershed Conservation Officer shall formulate an integrated watershed management plan and submit it to the Department, and after approval from the Department, such plan shall be implemented.

(4) Added by the Act to Amend Certain Nepal Acts, 2082. While implementing the plan under Sub-section (3), it shall be done in coordination with the local level. 4. Works that may be Carried Out in Protected Watershed Area: In a protected watershed area, the Watershed Conservation Officer may carry out or cause to be carried out the following works for soil and watershed conservation:-

(a) Construction and maintenance of check dams, gully control (check dams), embankments, terrace improvement, canals, diversion channels, retaining walls, ponds, and other necessary similar structures;

(b) Arrangement and maintenance of trial plots;

(c) Planting of trees, grass, shrubs, or other vegetation, and their maintenance and rearing;

(d) Conservation, maintenance, and promotion of forests, shrubs, grass, and other natural vegetation on landslide-prone land and steep slopes;

(e) Cultivation of crops and fruits;

(f) Maintaining the fertility of soil and the cleanliness of water and environment in a balanced manner;

(g) Electrification in relevant places;

(h) Carrying out other soil and watershed conservation-related works as prescribed by the Government of Nepal. 5. Classification of Land within Protected Watershed Area: (1) For the purpose of Section 4, the Watershed Conservation Officer may classify the land within a protected watershed area as prescribed. 6. Cultivation by Adopting Land Use System: (1) The Watershed Conservation Officer may cause to be cultivated any crop or fruit, or to plant trees, plants, or grass, or to carry out any other work by adopting the land use system on prescribed land within a protected watershed area.

(2) If the land prescribed under Sub-section (1) is privately owned, the concerned landowner or tenant shall carry out such works on his land by adopting the land use system.

(3) For carrying out works by adopting the land use system under Sub-section (2), the Department shall provide technical knowledge and services to the landowner or tenant, and necessary financial assistance shall also be given as prescribed.

(4) If, by reason of being caused to carry out any work by adopting the land use system under Sub-section (1), any tenant is evicted from any land, the Government of Nepal shall provide compensation to such tenant. If the concerned landowner of the land on which any work is caused to be carried out by adopting the land

use system wishes to relinquish his ownership to the Government of Nepal upon receiving compensation, such landowner may relinquish ownership.

While providing compensation to such relinquishing landowner and tenant, compensation shall be given taking into account the prevailing rate. 7. Provision of Technical Knowledge and Services and Financial Assistance: If any person wishes to carry out works under clause (a) of Section 4 on his privately owned land, the Department shall provide the necessary technical knowledge and services for carrying out such works, and necessary financial assistance shall also be given as prescribed. 8. Payment of Compensation: If the Watershed Conservation Officer carries out works under clause (a) or (b) of Section 4 on anyone's privately owned land, the Watershed Conservation Officer shall provide compensation to the concerned landowner for such works done on that land, amended by the Act to Amend Certain Nepal Acts, 2072. after consulting the concerned Rural Municipality or Municipality and taking into account the prevailing rate. 9. Power to Conduct Experiments: (1) While arranging a trial plot under clause (b) of Section 4, the Watershed Conservation Officer may cause experiments to be conducted by planting and raising any crop, fruit, tree, plant, grass, or similar other vegetation on such trial plot. (2) No person shall destroy in any manner the crop, fruit, tree, plant, grass, or similar other vegetation planted on a trial plot under Sub-section (1). 10.

Prohibited Activities on Land Subject to or Liable to Natural Disasters: Notwithstanding anything contained in the prevailing law, no person shall, without the permission of the Watershed Conservation Officer, carry out any of the following activities on land within a protected watershed area which the Watershed Conservation Officer has designated as land where floods or landslides occur or may occur, or where soil erosion or land-cutting occurs or may occur:- (a) Damming or storing in any manner any river, stream, torrent, lake, or reservoir, or groundwater, or diverting or channeling the dammed or stored water elsewhere through canals, auxiliary canals, drains, or in any other manner, or using such water in any work by so damming, storing, diverting, channeling, or in any other manner; (b) Cutting or otherwise destroying trees, plants, or other forest products that one is entitled to use at one's discretion under the prevailing forest law; (c) Cutting or otherwise destroying existing forests, trees, plants, shrubs, grass, or other natural vegetation; (d) Doing any act causing stones, soil, sand, mud, etc., to accumulate or collect, or causing the accumulated or collected stones, soil, sand, mud, etc., to be washed away; (e) Excavating, extracting, or taking away stones, sand, or other types of soil; (f) Throwing garbage, filth, or other similar environment-polluting waste, or constructing a place for dumping or storing such garbage, filth, and waste; (g) Establishing industries, businesses, or settlements; (h) Taking, keeping, or grazing cattle, buffaloes, sheep, goats, chickens, and other similar domestic animals and birds. 11. Power to Relocate Industries, Businesses, and Settlements: (1) If the Government of Nepal deems it necessary for soil and watershed conservation work to relocate an existing industry, business, or settlement established on land within a protected watershed area to another place, or to acquire the land on which such industry, business, or settlement is located, the Government of Nepal may relocate such industry, business, or settlement to another place or acquire such land in accordance with the prevailing law relating to land acquisition. (2) While relocating any industry, business, or settlement to another place under Sub-section (1), the Government of Nepal shall provide adequate compensation for the loss suffered by the concerned person therefrom. 12. Power of Entry: (1) The Watershed Conservation Officer or an employee designated by him may, at any time, enter upon any land within a protected watershed area to carry out any work mentioned in Section 4 or to inspect or maintain such works. (2) No person shall obstruct or cause to obstruct entry under Sub-section (1). 13.

Power to Prohibit: The Watershed Conservation Officer may prohibit any other person from carrying out activities that may cause soil erosion or land-cutting on the land where any work under Section 4 has been

carried out, and in the vicinity of such land. 14. Land may be Acquired: If the Government of Nepal wishes to acquire privately owned land for soil and watershed conservation, it may acquire such land in accordance with the prevailing law relating to land acquisition. 15. National Resource Conservation Commission: (1) The Government of Nepal shall, by publishing a notice in the Nepal Gazette, constitute a National Resource Conservation Commission to advise the Government of Nepal on matters relating to soil and watershed conservation. (2) The functions, duties, and powers of the National Resource Conservation Commission constituted under Sub-section (1) shall be as prescribed. 16. District Soil and Watershed Conservation Committee: (1) The Government of Nepal shall, by publishing a notice in the Nepal Gazette, constitute a District Soil and Watershed Conservation Committee to coordinate the implementation of soil and watershed conservation-related works in any district. (2) The functions, duties, and powers of the District Soil and Watershed Conservation Committee constituted under Sub-section (1) shall be as prescribed. 17. Not to Destroy, Spoil, Damage, or Alter: No person shall destroy, spoil, damage, or alter, or cause to be destroyed, spoiled, damaged, or altered, any work carried out under Section 4 in a protected watershed area. 18. Consultation with District Soil and Watershed Conservation Committee Required: The Watershed Conservation Officer shall consult the District Soil and Watershed Conservation Committee when classifying land within a protected watershed area under Section 5, or when causing any work to be carried out by adopting the land use system on such land under Sub-section (1) of Section 6. 19. Appointment of Watershed Conservation Officer: For the purpose of this Act, the Government of Nepal may, as required, appoint Watershed Conservation Officers. In the absence of such appointment of Watershed Conservation Officers, the Government of Nepal may designate any other officer to perform the work of such Officer. 20. Power to Seize: If any person acts in contravention of this Act or the rules made under this Act, the Watershed Conservation Officer may seize the tools, livestock, vehicles, and other goods and articles used in the course of such act. Provided that, in the case of livestock, such livestock may be released to the owner upon taking a deposit from the owner, and if the livestock owner does not wish to pay the deposit, the Watershed Conservation Officer may auction off such livestock. 21.

Penalties: (1) A person acting in contravention of Sub-section (2) of Section 6 or Sub-section (2) of Section 12 shall be liable to imprisonment for up to two months or a fine of up to five hundred rupees or both. (2) A person acting in contravention of Section 10 shall be liable to imprisonment for up to three months or a fine of up to five hundred rupees or both. (3) A person acting in contravention of Section 17 shall be liable to imprisonment for up to one year or a fine of up to one thousand rupees or both, and the amount of loss shall also be recovered from such person. (4) A person acting in contravention of any other Section of this Act or the rules made under this Act shall be liable to imprisonment for up to three months or a fine of up to five hundred rupees or both. (5) Tools, livestock, vehicles, and goods and articles related to an offence punishable under this Act shall be confiscated. 22. Government of Nepal to be Plaintiff: The Government of Nepal shall be the plaintiff in cases under this Act. 23. Investigation of Cases: (1) The investigation of cases relating to offences punishable under this Act shall be conducted by the Watershed Conservation Officer. (2) While investigating a case under Sub-section (1), the Watershed Conservation Officer shall obtain the opinion of the government attorney amended by the Act to Amend Certain Nepal Acts, 2082.. 24. No Bar to Government of Nepal's Use and Distribution of Water Resources: Nothing contained in this Act shall be deemed to prevent the Government of Nepal from undertaking the development of any water resources by itself. 25. Power to Make Rules: The Government of Nepal may make necessary rules for the purpose of implementing the objectives of this Act.